

Chapter 150 Specific Use Regulations

150.5 Home Occupation

150.5.1 General

(1) Application of this Section

The regulations in Section 150.5 apply to **home occupations**.

150.5.20 Use Requirements

150.5.20.1 General

(1) Home Occupation - Uses Not Permitted

A **home occupation** may not:

- (A) sell, rent or lease physical goods directly from the **dwelling unit**;
- (B) be a **personal service shop**;
- (C) be an office or medical office for a professional regulated under the College of Physicians and Surgeons of Ontario;
- (D) be an office or medical office for a professional regulated under the Regulated Health Professions Act, 1991, S.O. 1991, c. 18, as amended;
- (E) be an **animal shelter** or **kennel**;
- (F) be a **vehicle repair shop**, a **vehicle service shop**, or a **vehicle washing establishment**; or
- (G) be a **manufacturing use**.

(2) Home Occupation - No Customer or Client Attending the Premises for Specified Reasons

A **home occupation**, other than one for an **education use**, may not have clients or customers attending the **premises** for:

- (A) consultations;
- (B) receiving services; or
- (C) obtaining physical goods.

(3) Home Occupation - No Outdoor Activities, Services, Display or Storage

A **home occupation** may not have outdoor activities, services, display or **open storage**.

(4) Home Occupation - Music or Dance Instruction Permitted in a Detached House Only

A **home occupation** for music or dance instruction and training may only be in a **detached house**.

(5) Home Occupation - Not Permitted with a Group Home or Residential Care Home

A **home occupation** is not permitted with a **group home** or a **residential care home**.

(6) Home Occupation - No Employee Other than the Business Operator

A **home occupation** may not have an employee working in the **dwelling unit** who is not the business operator.

(7) Home Occupation - Personal Services Permitted in the Residential Zone Category

Despite regulations 150.5.20(1) and (2), a **home occupation** in the Residential Zone Category may be a **personal service shop**, limited to the following types of services:

- (A) barber;
- (B) hairdresser;
- (C) beautician;
- (D) dressmaker;
- (E) seamstress; and
- (F) tailor. [By-law: 820-2022]

(8) Home Occupation - Health Related Professionals Office Permitted in the Residential Zone Category

- (A) Despite regulations 150.5.20.1(1) and (2), a **home occupation** in the Residential Zone Category may be:
- (i) an office or medical office for a professional regulated under the College of Physicians and Surgeons of Ontario; and
 - (ii) an office or medical office for a professional regulated under the Regulated Health Professions Act, 1991, S.O. 1991, c. 18, as amended; and
- (B) Despite regulation 150.5.20.1(6), a **home occupation** in the Residential Zone Category described in (A), above, may have one employee working in the **dwelling unit** in addition to the business operator.
[By-law: 820-2022]

150.5.40 Building Requirements

150.5.40.1 General

(1) Home Occupation - No Exterior Alteration to Building

There may be no exterior alteration to a **building** to accommodate a **home occupation**.

(2) Home Occupation - Health Related Professionals Office in an Apartment Building in the Residential Zone Category

In the Residential Zone Category, if a **dwelling unit** in an **apartment building** has a **home occupation** that is a service provided by a professional regulated under the College of Physicians and Surgeons of Ontario or under the Regulated Health Professions Act, 1991, S.O. 1991, c. 18, as amended, the **dwelling unit** must be located on the **first floor** or in the **basement**. [By-law: 820-2022]

150.5.40.40 Floor Area

(1) Home Occupation - Maximum Interior Floor Area

The floor area for a **home occupation** may not exceed the lesser of:

- (A) 25% of total **interior floor area** of the **dwelling unit** the **home occupation** is located in; or
- (B) 100 square metres.

150.5.60 Ancillary Buildings and Structures

150.5.60.1 General

(1) Home Occupation - Not Permitted in an Ancillary Building

A **home occupation** is not permitted in an **ancillary building** or **structure**.

150.7 Garden Suites

150.7.1 General

(1) Application of this Section

The regulations of Section 150.7 apply to **garden suites**. [By-law: 101-2022]

(2) Definition of Lawful

For the purposes of Chapter 150.7, the words **lawful** and **lawfully** highlighted in bold type, in addition to the definitions provided in Zoning By-law 569-2013, Chapter 800 Definitions, includes existing or authorized on or before February 3, 2022. [By-law: 101-2022]

150.7.20 Use Requirements

150.7.20.1 General

(1) Garden Suite - Permitted Uses

- (A) Despite regulation 10.5.60.1(2), an **ancillary building** may be used for living accommodation in one **garden suite**.
- (B) Despite regulation 10.5.60.1(3), an **ancillary building** may have both food preparation facilities and sanitary facilities in a **garden suite**.
- (C) Despite regulation 10.5.60.1(4), above-ground parts of an **ancillary building** containing a **garden suite** may be erected prior to the erection of the **main walls** and completion of the roof of a **residential building** on the same lot.
- (D) Despite regulation 150.5.60.1(1), a **home occupation** is permitted in a **garden suite** if the **garden suite** is exclusively and separately occupied as a principal residence, applying the regulations of Section 150.5 as if it is a **dwelling unit**; and
- (E) Despite regulation 150.13.20.1(1), a **short-term rental** is permitted in an **ancillary building** if it is in a **garden suite** that is exclusively and separately occupied as a principal residence. [By-law: 101-2022]

(2) Garden Suite - Use Restriction

A maximum of one **ancillary building** containing either a **garden suite** or a **laneway suite** is permitted on a lot. A lot may not contain both a **garden suite** and a **laneway suite**. [By-law: 101-2022]

150.7.50 Yards

150.7.50.10 Landscaping

(1) Landscaping Requirements for a Garden Suite

Despite regulation 10.5.50.10(3), for a lot with a **residential building** and an **ancillary building** containing a **garden suite**:

- (A) with a lot **frontage** of greater than 6.0 metres, a minimum of 50 percent of the area:
 - (i) between all rear **main walls** of the **residential building** on the lot and the **rear lot line**, and
 - (ii) extending parallel to the **rear lot line** across the full width of the lot from the point where the rear **main wall** of the **residential building** meets the **residential building's** side **main walls** closest to the respective **side lot lines**, must be for **soft landscaping**;
- (B) with a lot **frontage** of 6.0 metres or less, a minimum of 25 percent of the area:
 - (i) between all rear **main walls** of the **residential building** on the lot and the **rear lot line**, and

- (ii) extending parallel to the **rear lot line** across the full width of the **lot** from the point where the rear **main wall** of the **residential building** meets the **residential building's** side **main walls** closest to the respective **side lot lines**, must be for **soft landscaping**. [By-law: 101-2022]

150.7.60 Ancillary Building Requirements When Containing a Garden Suite

150.7.60.20 Setbacks

(1) Parts of a Garden Suite to which a Required Building Setback Applies

Despite regulation 5.10.40.70.(2), the required minimum **ancillary building setbacks** apply to all parts of an **ancillary building** containing a **garden suite** above-ground and below-ground, excluding footings. [By-law: 101-2022]

(2) Garden Suite - Rear Yard Setback

Despite regulations 10.5.60.20(2) and (5), and regulation 10.10.60.20(1), the required minimum **rear yard setback** for an **ancillary building** containing a **garden suite** is:

- (A) if on a **lot** with a **lot depth** greater than 45.0 metres, equal to the greater of 1.5 metres and half the height of the **ancillary building** containing a **garden suite**; and
- (A) if on a **lot** with a **lot depth** greater than 45.0 metres, equal to the greater of 1.5 metres or half the height of the **ancillary building** containing a **garden suite**; and [By-law: 420-2023]
- (B) In all other cases, 1.5 metres. [By-law: 101-2022]

(3) Garden Suite on Through Lot - Rear Yard Setback

The required minimum **rear yard setback** for an **ancillary building** containing a **garden suite** must comply with regulation 150.7.60.20(2), except:

- (A) if it is on a **through lot**, and a **residential building** on an adjacent **lot** fronts on the **street** that abuts the **rear lot line** of the **through lot**, the required minimum **rear yard setback** for the **ancillary building** containing a **garden suite** is equal to the required minimum **front yard setback** for the **residential building** on the adjacent **lot**; and
- (B) In all other cases, 1.5 metres; [By-law: 101-2022]

(4) Garden Suite containing a Parking Space on Through Lot - Rear Yard Setback

The required minimum **rear yard setback** for an **ancillary building** containing a **garden suite** and a **parking space** must comply with regulation 150.7.60.20(2), except if it is on a **through lot** and **vehicle** access is from the **street** abutting the **rear lot line**, the required minimum **rear yard setback** is greater of:

- (A) the **rear yard setback** required by regulation 150.7.60.20(3)(A); and
- (A) the **rear yard setback** required by regulation 150.7.60.20(3)(A); or [By-law: 420-2023]
- (B) 6.0 metres; [By-law: 101-2022]

(5) Garden Suite - Side Yard Setback

Despite regulations 10.5.60.20(3) and (6) and 10.10.60.20(1), the required minimum **side yard setback** for an **ancillary building** containing a **garden suite** is:

- (A) if the **side lot line** does not abut a **street**, and there are openings such as doors or windows in the side **main wall** of the **ancillary building**, the greater of 1.5 metres and the amount that is 10 percent of the **lot frontage**, to a maximum of 3.0 metres; and
- (B) in all other cases, the greater of 0.6 metres and the amount that is 10 percent of the **lot frontage**, to a maximum of 3.0 metres.
- (B) in all other cases, the greater of 0.6 metres or the amount that is 10 percent of the **lot frontage**, to a maximum of 3.0 metres. [By-law: 101-2022] [By-law: 101-2022; 420-2023]

(6) Garden Suite on Corner Lot - Side Yard Setback

Despite 10.5.60.20(3)(C)(i), the required minimum **side yard setback** for an **ancillary building** containing a **garden suite** must comply with regulation 150.7.60.20(5), except:

- (A) if it is on a **corner lot** and the **ancillary building** containing a **garden suite** contains a **parking space** and **vehicle** access from the **street** abutting the **side lot line**, the required minimum **side yard setback** is 6.0 metres; and
- (B) in all other cases, the required minimum **side yard setback** is the greater of the required minimum **side yard setback** for the **residential building** on the **lot** and 1.5 metres. [By-law: 101-2022]

150.7.60.21 Setback Exemptions

(1) Permitted Setbacks for Lawfully Existing Ancillary Buildings

If the **lawful building setback** of a **lawfully existing ancillary building** is less than the required minimum **building setback** for an **ancillary building** containing a **garden suite** required by Clause 150.7.60.20, the required minimum **building setback** for a **garden suite** in that **lawfully existing ancillary building** is:

- (A) the minimum **rear yard setback** for that **lawfully existing ancillary building**; and
- (B) the minimum **side yard setback** for that **lawfully existing ancillary building**. [By-law: 101-2022]

150.7.60.30 Separation and Dimensions

(1) Minimum Separation between a Residential Building

Despite regulation 10.5.60.30(1), an **ancillary building** containing a **garden suite** must be:

- (A) no less than 5.0 metres from a **residential building** on the same **lot** if the height of the **ancillary building** is no greater than 4.0 metres;
- (B) no less than 7.5 metres from a **residential building** on the same **lot** if the height of the **ancillary building** is greater than 4.0 metres; and
- (C) despite regulations 150.7.60.30(1)(A) and (B), if an **ancillary building** containing a **garden suite** is on a **lot** in the area bounded by Coxwell Avenue, Coxwell Boulevard and Massey Creek to the west, the Don River and Sunrise Avenue to the north, Victoria Park Avenue and Nursewood Park to the east, and Lake Ontario to the south, the **ancillary building** containing a **garden suite** must be no less than 5.0 metres from a **residential building** on the same **lot**. [By-law: 101-2022]

(2) Angular Planes

- (A) No part of an **ancillary building** containing a **garden suite** may penetrate any of the following:
 - (i) a 45-degree **angular plane** projected towards the **rear lot line**, beginning from a height of 4.0 metres at a distance of 7.5 metres from the rear **main wall** of the **residential building** on the same **lot**;
 - (ii) a 45-degree **angular plane** projected towards the **front lot line**, beginning from a height of 4.0 metres from the required **rear yard setback**; and
 - (iii) a 45-degree **angular plane** projected towards the opposite **side lot line**, beginning from a height of 4.0 metres from the required **side yard setback**.
- (B) Despite regulation 150.7.60.30(2)(A), **angular planes** are not applicable to those sides of an **ancillary building** containing a **garden suite** that abut a **street**; and
- (C) Despite regulation 150.7.60.30(2)(A)(i), if an **ancillary building** containing a **garden suite** is on a **lot** in the area bounded by Coxwell Avenue, Coxwell Boulevard and Massey Creek to the west, the Don River and Sunrise Avenue to the north, Victoria Park Avenue and Nursewood Park to the east, and Lake Ontario to the south, no part of the **ancillary building** containing a **garden suite** may penetrate a 45-degree **angular plane** projected towards the **rear lot line**, beginning from a height of 4.0 metres at a distance of 5.0 metres from the rear **main wall** of the **residential building** on the same **lot**. [By-law: 101-2022]

(3) Permitted Projections into Required Front Main Wall Angular Plane

a 45-degree **angular plane** projected towards the opposite **side lot line**, beginning from a height of 4.0 metres from the required **side yard setback**. [By-law: 101-2022]

(4) Skylights in a Roof

Despite regulation 150.7.60.30(3), skylights in a roof may project into a required **angular plane** a maximum of 0.3 metres. [By-law: 101-2022]

150.7.60.31 Separation Exemptions

(1) Minimum Separation Between a Lawfully Existing Residential Building and a Lawfully Existing Ancillary Building

If the separation between a **lawfully existing ancillary building** and a **lawfully existing residential building** on the same **lot** is less than the required minimum separation between an **ancillary building** containing a **garden suite** and a **residential building** required by Clause 150.7.60.30(1), the required minimum separation between the **lawfully existing residential building** and the **lawfully existing ancillary building** is the separation that exists between the **lawfully existing ancillary building** and the **lawfully existing residential building**. [By-law: 101-2022]

150.7.60.40 Height

(1) Maximum Height of a Garden Suite

Despite regulation 10.5.60.40(2)(B), the permitted maximum height of an **ancillary building** containing a **garden suite** is:

- (A) if the **ancillary building** containing a **garden suite** is located a minimum of 5.0 metres to less than 7.5 metres from the **residential building** on the **lot**, 4.0 metres;
- (B) if the **ancillary building** containing a **garden suite** is located 7.5 metres or more from the **residential building** on the **lot**, 6.0 metres; and
- (C) despite regulations 150.7.60.40(1)(A) and (B), if the **ancillary building** containing a **garden suite** is on a **lot** in the area bounded by Coxwell Avenue, Coxwell Boulevard and Massey Creek to the west, the Don River and Sunrise Avenue to the north, Victoria Park Avenue and Nursewood Park to the east, and Lake Ontario to the south, 6.3 metres. [By-law: 101-2022]

(2) Maximum Storeys for Garden Suites

Despite regulation 10.5.60.40(3), an **ancillary building** containing a **garden suite** may have a maximum of two **storeys**, subject to (1) above. [By-law: 101-2022]

(3) Height of Specific Structures on a Garden Suite

The following structures on the roof of an **ancillary building** containing a **garden suite** may exceed the permitted maximum height for that **building** by 1.0 metres:

- (A) antennae;
- (B) flagpoles;
- (C) parapets for a **green roof**, if they are no closer than 1.0 metre from the **main walls** of the **ancillary building**;
- (D) satellite dishes; and
- (E) weather vanes. [By-law: 101-2022]

(4) Height of Skylights on a Garden Suite

Skylights on the roof of an **ancillary building** containing a **garden suite** may exceed the permitted maximum height for that **building** by 0.3 metres. [By-law: 101-2022]

(5) Height of Elements for Functional Operation of the Garden Suite

The following equipment and **structures** on the roof of an **ancillary building** containing a **garden suite** may exceed the permitted maximum height for that **building** by 1.0 metre, subject to (6) below:

- (A) equipment used for the functional operation of the **ancillary building** containing a **garden suite**, such as electrical, utility, mechanical and ventilation equipment;

- (B) **structures** or parts of the **ancillary building** containing a **garden suite** used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, chimneys, vents, and water supply facilities; and
 - (C) **structures** that enclose, screen or cover the elements listed in regulation (A) and (B) above. [By-law: 101-2022]
- (6) Height - Horizontal Limits on Elements for Functional Operation of the Garden Suite
Equipment, **structures** or parts of an **ancillary building** permitted in regulation 150.7.60.40(5) must not:
- (A) cover more than 30 percent of the area of the roof, measured horizontally; and
 - (B) be located closer than 1.0 metre to the **main walls** of the ancillary building. [By-law: 101-2022]
- (7) Height of Garden Suite Entrance
Regulation 10.5.60.40(4) does not apply to an **ancillary building** containing a **garden suite**. [By-law: 101-2022]

150.7.60.50 Floor Area

- (1) Exclusion from Floor Space Index
The **gross floor area** of an **ancillary building** containing a **garden suite** is not included for the purpose of calculating the total **gross floor area** and floor space index for a **lot**. [By-law: 101-2022]
- (2) Garden Suite - Interior Floor Area
The **interior floor area** of an **ancillary building** containing a **garden suite** must be less than the **gross floor area** of the **residential building** on a **lot**. [By-law: 101-2022]
- (3) Exemption from Maximum Floor Area for an Ancillary Building
Regulation 10.5.60.50(2) does not apply to an **ancillary building** containing a **garden suite**. [By-law: 101-2022]

150.7.60.60 Decks, Platforms and Amenities, and Permitted Encroachments

- (1) Interpretation of Platform Walls
The exterior sides of a platform, such as a deck, porch, balcony or similar **structure**, attached to or within 0.3 metres of an **ancillary building** containing a **garden suite**, are not **main walls** if at least 50 percent of the exterior sides above the floor are open to the outside. [By-law: 101-2022]
- (2) Platform Restrictions
Despite regulation 10.5.60.20(11), a platform without **main walls** in accordance with regulation 150.7.60.60(1) is permitted, if:
- (A) the area of the platform, other than a **green roof**, is less than 10 percent of the **interior floor area** of the **garden suite**;
 - (B) the platform complies with the required minimum **building setbacks**, separation distances and **angular planes** for the **ancillary building** containing a **garden suite**; and
 - (C) the exterior sides of a platform adjacent to a **side yard** are visually screened from an abutting **lot** by an opaque barrier with a vertical dimension of no less than 1.5 metres. [By-law: 101-2022]
- (3) Platform Height
Despite regulation 10.5.60.40(5)(B), the level of the floor of a platform permitted in accordance with regulation 150.7.60.60(2), other than a **green roof**, must be:
- (A) no higher than 0.2 metres above the level of the floor of the **storey** from which it gains access; and
 - (B) located on the **first floor** of an **ancillary building** containing a **garden suite**. [By-law: 101-2022]
- (4) Permitted Encroachments for Platforms
Despite regulation 150.7.60.60(2)(B), a platform without **main walls** in accordance with 150.7.60.60(1), together with stairs or ramps leading to the platform, may encroach into the distance separation required in

regulation 150.7.60.30(1) by a maximum of 1.5 metres from the **front main wall** of the **ancillary building** if the platform is no higher than 0.3 metres above the average elevation of the ground measured along the **front main wall** of the **ancillary building**. [By-law: 101-2022]

(5) Permitted Encroachments for Canopies and Awnings

A canopy, awning or similar **structure**, with or without **structural** support, or a roof over a platform which complies with regulation 150.7.60.60(4), may encroach into a required separation distance or **building setback**, subject to the following:

- (A) the maximum height of the roof, canopy, awning or similar **structure** is 4.0 metres above the average elevation of the ground measured along the abutting **main wall** of the **ancillary building**;
- (B) a canopy, awning or similar **structure** may encroach into the distance separation required in regulation 150.7.60.30(1) a maximum of 1.5 metres from the front **main wall** of the **ancillary building**; and
- (C) between a rear or side **lot line** and the **ancillary building**, a canopy, awning or similar **structure** may encroach into the **ancillary building setbacks** required in Clause 150.7.60.20 as follows:
 - (i) on a **main wall** of the **ancillary building** containing a **garden suite** that faces a **street**, the lesser of 50 percent of the required **building setback** or 1.5 metres. [By-law: 101-2022]

(6) Architectural Features

Architectural features on an **ancillary building** containing a **garden suite** must comply with the following, if the architectural features are no closer to a **lot line** than 0.3 metres:

- (A) a pilaster, decorative column, cornice, sill, belt course or other similar architectural feature may encroach into a **building setback** required in Clause 150.7.60.20 or into the distance separation required in regulation 150.7.60.30(1) to a maximum of 0.6 metres; and
- (B) a chimney breast may encroach into a **building setback** required in Clause 150.7.60.20 or into the distance separation required in regulation 150.7.60.30(1) to a maximum of 0.6 metres, if it is no wider than 2.0 metres. [By-law: 101-2022]

(7) Equipment

Wall mounted equipment on an **ancillary building** containing a **garden suite**, such as vents, pipes, utility equipment, satellite dishes, antennae or air conditioners, may encroach a maximum of 0.6 metres as follows, if the equipment is no closer to a **lot line** than 0.3 metres:

- (A) on a **main wall** of the **ancillary building**, into the minimum **building setbacks** required in Clause 150.7.60.20; and
- (B) on the front **main wall** of the **ancillary building**, into the distance separation required in regulation 150.7.60.30(1). [By-law: 101-2022]

150.7.60.70 Lot Coverage

(1) Lot Coverage Requirement for a Lot with a Garden Suite

Despite regulations 10.5.60.70(1) and 10.10.60.70(1), if a **lot** has an **ancillary building** containing a **garden suite**:

- (A) the **ancillary building** containing a **garden suite** is not included in the overall calculation of **lot coverage**;
- (B) the area of the **lot** covered by all **ancillary buildings** combined, including the **ancillary building** containing a **garden suite**, may not exceed 20 percent of the **lot area**; and
- (C) the area of the **lot** covered by an **ancillary building** containing a **garden suite** may not exceed the lesser of:
 - (i) 40 percent of the area:
 - (a) between all rear **main walls** of the **residential building** on the **lot** and the **rear lot line**; and

- (b) extending parallel to the **rear lot line** across the full width of the **lot** from the point where the rear **main wall** of the **residential building** meets the **residential building's side main walls** closest to the respective **side lot lines**; and
- (ii) A total floor area of 60.0 square metres. [By-law: 101-2022]

150.7.75 Energy Regulations

150.7.75.1 General

(1) Solar Energy Device

Despite regulation 10.5.75.1(4), a photovoltaic **solar energy** device or thermal **solar energy** device that is on an **ancillary building** containing a **garden suite**:

- (A) must comply with the required minimum **building setbacks** for an **ancillary building** containing a **garden suite**; and
- (B) no part of the device may be higher than 1.2 metres above the permitted maximum height for an **ancillary building** containing a **garden suite**. [By-law: 101-2022]

150.7.80 Parking and Bicycle Parking

150.7.80.1 General

(1) Parking Space Requirement for a Lot with a Garden Suite

Despite regulation 200.5.10.1(1), if a **lot** has an **ancillary building** containing a **garden suite**, no **parking space** is required for the **garden suite**. [By-law: 101-2022]

(1) Parking Space Requirement for a Lot with a Garden Suite

Despite the **parking space** requirements in regulations 200.5.10.1(1) and 200.5.10.11(1)(C):

- (A) if a **lot** has an **ancillary building** containing a **garden suite**, no **parking spaces** are required for any **dwelling units** and **secondary suites** in a **detached house**, **semi-detached house**, **townhouse**, **duplex**, **triplex**, or **fourplex** on the same **lot**; and
- (B) no **parking space** is required for a **garden suite**. [By-law: 420-2023]

(2) Bicycle Parking Space Requirement for a Garden Suite

An **ancillary building** containing a **garden suite** must provide a minimum of two **bicycle parking spaces** within the **garden suite** or within any required separation distance or the required **building setbacks** for an **ancillary building** containing a **garden suite**. [By-law: 101-2022]

(3) Access to Parking Space

Despite regulation 10.5.80.40(3), if a **lot** has an **ancillary building** containing a **garden suite**, **vehicle** access to a **parking space** must be provided from a **lawfully existing vehicle** access. [By-law: 101-2022]

150.8 Laneway Suites

150.8.1 General

(1) Application of this Section

The regulations of Section 150.8 apply to **laneway suites**. [By-law: 810-2018]

150.8.20 Use Requirements

150.8.20.1 General

(1) Laneway Suite – Permitted Uses

- (A) Despite regulation 10.5.60.1(2), an **ancillary building** may be used for living accommodation in one **laneway suite**.
- (B) Despite regulation 10.5.60.1(3), an **ancillary building** may have both food preparation facilities and sanitary facilities in a **laneway suite**.
- (C) Despite regulation 150.5.60.1(1) a **home occupation** is permitted in a **laneway suite** if the **laneway suite** is exclusively and separately occupied as a principal residence, applying the regulations of Section 150.5 as if it is a **dwelling unit**; and
- (D) Despite regulation 150.13.20.1(1) a **short-term rental** is permitted in an **ancillary building** if it is in a **laneway suite** that is exclusively and separately occupied as a principal residence.
- (E) Despite regulation 10.5.60.1(4) above-ground parts of an **ancillary building** containing a **laneway suite** may be erected prior to the erection of the **main walls** and completion of the roof of a **residential building** on the same **lot**. [By-law: 810-2018; 1107-2021]

(2) Laneway Suite - Use Restriction

A maximum of one **ancillary building** containing either a **laneway suite** or a **garden suite** is permitted on a **lot**. A **lot** may not contain both a **laneway suite** and a **garden suite**. [By-law: 101-2022]

150.8.30 Lot Requirements

150.8.30.20 Lot Line

(1) Minimum Lot Line on a Lane

A laneway suite must be on a **lot** with a **rear lot line** or **side lot line** abutting a **lane** for at least 3.5 metres; or on a **lot** with a cumulative total of at least 3.5 metres along a **side lot line** and **rear lot line**. [By-law: 1107-2021]

150.8.50 Yards

150.8.50.10 Landscaping

(1) Landscaping Requirements for a Laneway Suite

Despite regulation 10.5.50.10 (3), for a **lot** with a **residential building** and an **ancillary building** containing a **laneway suite**:

- (A) with a **lot frontage** of 6.0 metres or less, a minimum of 60 percent of the area between all rear **main walls** of the **residential building** and the front **main wall** of the **ancillary building** containing a **laneway suite** must be for **soft landscaping**;
- (B) with a **lot frontage** of greater than 6.0 metres, a minimum of 85 percent of the area between all rear **main walls** of the **residential building** and the front **main wall** of the **ancillary building** containing a

laneway suite must be for **soft landscaping**, excluding a pedestrian walkway which may have a maximum width of 1.5 metres; and

- (C) the area between the **ancillary building** containing a **laneway suite** and the **lot line** abutting a **lane**, excluding a permitted **driveway**, and a pedestrian walkway which may have a maximum width of 1.5 metres, must be **landscaping**, of which a minimum of 75 percent must be **soft landscaping**. [By-law: 1107-2021]

150.8.60 Ancillary Building Requirements When Containing a Laneway Suite

150.8.60.20 Setbacks

(1) Parts of a Laneway Suite to which a Required Building Setback Applies

The required minimum **ancillary building setbacks** apply to all parts of an **ancillary building** containing a **laneway suite** above-ground and below-ground, excluding footings. [By-law: 810-2018]

(2) Laneway Suite - Rear Yard Setback

Despite regulations 10.5.60.20(2) and (5) and regulation 10.10.60.20(1), the required minimum **rear yard setback** for an **ancillary building** containing a **laneway suite** is:

- (A) if the **rear lot line** does not abut a **street** or **lane** and there are no openings such as **vehicle** access, doors or windows in the rear **main wall** of the **ancillary building**, 0.0 metres; and
(B) in all other cases, 1.0 metres. [By-law: 810-2018; 1107-2021]

(3) Laneway Suite – Side Yard Setback

Despite regulations 10.5.60.20(3) and (6) and regulation 10.10.60.20(1), the required minimum **side yard setback** for an **ancillary building** containing a **laneway suite** is:

- (A) if the **side lot line** does not abut a **street** or **lane** and there are no openings such as **vehicle** access, doors or windows in the side **main wall** of the **ancillary building**, 0.0 metres;
(B) if the **side lot line** abuts a **street**, the required minimum **side yard setback** for the **residential building** on the **lot**; [By-law: 420-2023]
(C) if the **side lot line** abuts a **lot** in the R, RD, RS, RT or RM Zone and the **rear lot line** abuts a **lane**, beginning from a height of 4.0 metres, an **ancillary building** must be set back 1.5 metres from the **side lot line** that abuts the **rear lot line** of another **lot**; and [By-law: 420-2023]
(D) in all other cases, 1.0 metres. [By-law: 810-2018; 1107-2021]

150.8.60.21 Setback Exemptions

(1) Permitted Setbacks for Lawfully Existing Ancillary Buildings

If the **lawful building setback** of a **lawfully existing ancillary building** is less than the required minimum **building setback** for an **ancillary building** containing a **laneway suite** required by Clause 150.8.60.20, the required minimum **building setback** for a **laneway suite** in that **lawfully existing ancillary building** is:

- (A) the minimum **rear yard setback** for that **lawfully existing ancillary building**; and [By-law: 1107-2021]
(B) the minimum **side yard setback** for that **lawfully existing ancillary building**. [By-law: 1210-2019]

150.8.60.30 Separation and Dimensions

(1) Minimum Separation between a Residential Building and the Ancillary Building

Despite regulation 10.5.60.30(1) an **ancillary building** containing a **laneway suite** must be:

- (A) no less than 5.0 metres from a **residential building** on the same **lot** if the height of the **ancillary building** is no greater than 4.0 metres; and

(B) no less than 7.5 metres from a **residential building** on the same **lot** if the height of the **ancillary building** is greater than 4.0 metres. [By-law: 810-2018]

(2) Angular Plane

No part of an **ancillary building** containing a **laneway suite** may penetrate a 45 degree **angular plane** projected towards the **rear lot line** beginning from a height of 4.0 metres at a distance of 7.5 metres from rear **main wall** of the **residential building** on the same **lot**. [By-law: 1210-2019]

(3) Permitted Projections into a Required Angular Plane

Despite regulation 150.8.60.30(2), a dormer or a vertical extension of the front **main wall** of an **ancillary building** containing a **laneway suite** may project into the required **angular plane** if it occupies no more than 30 percent of the total width of the **ancillary building's** front **main wall**. [By-law: 1210-2019]

(4) Skylights and Windows in a Roof

Despite regulation 150.8.60.30(2), windows or skylights may project into the required **angular plane** a maximum of 0.3 metres. [By-law: 1210-2019]

(5) Maximum Length of a Laneway Suite

The permitted maximum **building length** for an **ancillary building** containing a **laneway suite** is 10.0 metres. [By-law: 1210-2019]

(6) Maximum Width of a Laneway Suite

The permitted maximum **building** width of an **ancillary building** containing a **laneway suite** is 8.0 metres. [By-law: 1107-2021]

150.8.60.31 Separation Exemptions

(1) Minimum Separation Between a Lawfully Existing Residential Building and a Lawfully Existing Ancillary Building

If the separation between a **lawfully existing ancillary building** and a **lawfully existing residential building** on the same **lot** is less than the required minimum separation between an **ancillary building** containing a **laneway suite** and a **residential building** required by Clause 150.8.60.30, the required minimum separation between the **lawfully existing residential building** and the **lawfully existing ancillary building** is the separation that exists between the **lawfully existing ancillary building** and the **lawfully existing residential building**. [By-law: 1210-2019]

(2) Permitted Length of a Lawfully Existing Ancillary Building

If the **lawful building length** for a **lawfully existing ancillary building** is more than the permitted maximum **building length** for an **ancillary building** containing a **laneway suite** required by regulation 150.8.60.30(5), the permitted maximum **building length** for an **ancillary building** containing a **laneway suite** is the **lawful building length** for the **lawfully existing ancillary building**. [By-law: 1107-2021]

(3) Permitted Width of a Lawfully Existing Ancillary Building

If the **lawful building** width for a **lawfully existing ancillary building** is more than the permitted maximum **building** width for an **ancillary building** containing a **laneway suite** required by regulation 150.8.60.30(6), the permitted maximum **building** width for an **ancillary building** containing a **laneway suite** is the **lawful building** width for the **lawfully existing ancillary building**. [By-law: 1107-2021]

150.8.60.40 Height

(1) Maximum Height of a Laneway Suite

Despite regulation 10.5.60.40(2)(B), the permitted maximum height of an **ancillary building** containing a **laneway suite** is:

- (A) if the **ancillary building** containing a **laneway suite** is located a minimum of 5.0 metres to less than 7.5 metres from the **residential building** on the **lot**, 4.0 metres; and
- (B) if the **ancillary building** containing a **laneway suite** is located 7.5 metres or more from the **residential building** on the **lot**, 6.3 metres. [By-law: 1107-2021]

(2) Maximum Storeys for Laneway Suites

Despite regulation 10.5.60.40(3), an **ancillary building** or **structure** containing a **laneway suite** may have a maximum of two **storeys**, subject to (1) above. [By-law: 810-2018]

(3) Height of Specific Structures on a Laneway Suite

The following **structures** on the roof of an **ancillary building** containing a **laneway suite** may exceed the permitted maximum height for that **building** by 1.0 metres:

- (A) antennae;
- (B) flagpoles;
- (C) parapets for a **green roof**, if they are no closer than 0.5 metres to the **main walls** of the **ancillary building**; [By-law: 1107-2021]
- (D) satellite dishes; and
- (E) weather vanes. [By-law: 810-2018]

(4) Height of Skylights on a Laneway Suite

Skylights on the roof of an **ancillary building** containing a **laneway suite** may exceed the permitted maximum height for that **building** by 0.3 metres. [By-law: 1107-2021]

(5) Height of Elements for Functional Operation of a Building

The following equipment and **structures** on the roof of an **ancillary building** containing a **laneway suite** may exceed the permitted maximum height for that **building** by 1.5 metres, subject to (6) below:

- (A) equipment used for the functional operation of the **ancillary building** containing a **laneway suite**, such as electrical, utility, mechanical and ventilation equipment;
- (B) **structures** or parts of the **ancillary building** containing a **laneway suite** used for the functional operation of the **building**, such as enclosed stairwells, roof access, maintenance equipment storage, chimneys, vents, and water supply facilities; and
- (C) **structures** that enclose, screen or cover the elements listed in (A) and (B) above. [By-law: 1107-2021]

(6) Height - Horizontal Limits on Elements for Functional Operation of a Building

Equipment, **structures** or parts of a **building** permitted in (5) above must not:

- (A) cover more than 30 percent of the area of the roof, measured horizontally; and
- (B) be located closer than 1.5 metres to the **main walls** of the **ancillary building**. [By-law: 1107-2021]

(7) Height of Laneway Suite Entrance

Regulation 10.5.60.40(4) does not apply to an **ancillary building** containing a **laneway suite**. [By-law: 1107-2021]

150.8.60.50 Floor Area

(1) Exclusion from Floor Space Index

The **gross floor area** an **ancillary building** containing a **laneway suite** is not included for the purpose of calculating the total **gross floor area** and floor space index for a **lot**. [By-law: 810-2018]

(2) Laneway Suite – Interior Floor Area

The **interior floor area** of an **ancillary building** containing a **laneway suite** must be less than the **gross floor area** of the **residential building** on a **lot**. [By-law: 810-2018]

(3) Exemption from Maximum Floor Area for an Ancillary Building

Regulation 10.5.60.50(2) does not apply to an **ancillary building** containing a **laneway suite**. [By-law: 1210-2019]

150.8.60.60 Decks, Platforms and Amenities, and Permitted Encroachments

(1) Interpretation of Platform Walls

The exterior sides of a platform, such as a deck, porch, balcony or similar **structure**, attached to or within 0.3 metres of an **ancillary building** containing a **laneway suite**, are not **main walls** if at least 50 percent of the exterior sides above the floor are open to the outside. [By-law: 810-2018]

(2) Platform Restrictions

Despite regulation 10.5.60.20(11) a platform without **main walls** in accordance with (1) above, is permitted, if:

- (A) the area of the platform, other than a **green roof**, is less than 10 percent of the **interior floor area** of the **laneway suite**;
- (B) the platform complies with the required minimum **building setbacks**, separation distances and angular planes for the **ancillary building** containing a **laneway suite**; and
- (C) the exterior sides of a platform adjacent to a **side yard** must be visually screened from an abutting **lot** by an opaque barrier with a vertical dimension of no less than 1.5 metres. [By-law: 810-2018]

(3) Platform Height

Despite regulation 10.5.60.40(5)(B), the level of the floor of a platform permitted in accordance with (2) above, other than a **green roof**, must be:

- (A) no higher than 0.2 metres above the level of the floor of the **storey** from which it gains access; and
- (B) no higher than 4.0 metres above **average grade** unless it is attached to or within 0.3 metres of a **main wall** facing a **lane**. [By-law: 810-2018]

(4) Permitted Encroachments for Platforms

Despite (2)(B) above, a platform without **main walls** in accordance with (1) above, together with stairs or ramps leading to the platform, may encroach into the distance separation required in regulation 150.8.60.30(1) a maximum of 1.5 metres from the front **main wall** of the **ancillary building** if the platform is no higher than 0.3 metres above the average elevation of the ground measured along the front **main wall** of the **ancillary building**. [By-law: 810-2018]

(5) Permitted Encroachments for Canopies and Awnings

A canopy, awning or similar **structure**, with or without structural support, or a roof over a platform which complies with (4) above, may encroach into a required separation distance or **building setback**, subject to the following:

- (A) the maximum height of the roof, canopy, awning or similar **structure** is 4.0 metres above the average elevation of the ground measured along the abutting **main wall** of the **ancillary building**;
- (B) a canopy, awning or similar **structure** may encroach into the distance separation required in regulation 150.8.60.30(1) a maximum of 1.5 metres from the front **main wall** of the **ancillary building**; and
- (C) between a **lane** and the **ancillary building** containing a **laneway suite**, a canopy, awning or similar **structure** may encroach into the **ancillary building setbacks** required in Clause 150.8.60.20 a maximum of 0.75 metres from the **ancillary building's main wall** facing the **lane**. [By-law: 810-2018]

(6) Architectural Features

Architectural features on an **ancillary building** containing a **laneway suite** must comply with the following:

- (A) a pilaster, decorative column, cornice, sill, belt course or other similar architectural feature may encroach into a **building setback** required in Clause 150.8.60.20 or into the distance separation required in regulation 150.8.60.30(1) a maximum of 0.6 metres; and
- (B) a chimney breast may encroach into a **building setback** required in Clause 150.8.60.20 or into the distance separation required in regulation 150.8.60.30(1) a maximum of 0.6 metres, if it is no wider than 2.0 metres. [By-law: 810-2018]

(7) Equipment

Wall mounted equipment on an **ancillary building** containing a **laneway suite**, such as vents, pipes, utility equipment, satellite dishes, antennae or air conditioners, may encroach a maximum of 0.6 metres into:

- (A) on a **main wall** of the **ancillary building** facing a **lane**, the minimum **building setbacks** abutting the **lane** required in Clause 150.8.60.20; and
- (B) on the front **main wall** of the **ancillary building**, the distance separation required in regulation 150.8.60.30(1). [By-law: 810-2018]

150.8.60.70 Lot Coverage

(1) Lot Coverage Requirement for a Lot with a Laneway Suite

Despite regulations 10.5.60.70(1) and 10.10.60.70(1), if a **lot** has an **ancillary building** containing a **laneway suite**:

- (A) the **ancillary building** containing a **laneway suite** it is not included in the overall calculation of **lot coverage**; and
- (B) the area of the **lot** covered by all **ancillary buildings** combined, including the **ancillary building** containing a **laneway suite**, may not exceed 30 percent of the **lot area**. [By-law: 1210-2019]

150.8.80 Parking and Bicycle Parking

150.8.80.1 General

(1) Parking Space Requirement for a Lot with a Laneway Suite

Despite the **parking space** requirements in regulations 200.5.10.1(1) and 200.5.10.11(1)(C):

- (A) if a **lot** has an **ancillary building** containing a **laneway suite**, no **parking spaces** are required for any **dwelling units** and **secondary suites** in a **detached house**, **semi-detached house**, **townhouse**, **duplex**, **triplex**, or **fourplex** on the same **lot**; and
- (B) no **parking space** is required for a **laneway suite**. [By-law: 420-2023]

(2) Bicycle Parking Space Requirement for a Laneway Suite

An **ancillary building** containing a **laneway suite** must have a minimum of two **bicycle parking spaces** within the **laneway suite**, or within any required separation distance, or within the required **building setbacks** for an **ancillary building** containing a **laneway suite**. [By-law: 1107-2021]

150.10 Secondary Suite

150.10.1 General

(1) Application of this Section

The regulations in Section 150.10 apply to **secondary suites**. [By-law: 549-2019]

150.10.20 Use Requirements

150.10.20.1 General

(1) Secondary Suite - Permitted in Certain Types of Residential Buildings

A **secondary suite** may be in:

- (A) a **detached house**;
- (B) a **semi-detached house**; and
- (C) a **townhouse**. [By-law: 549-2019]

(2) Secondary Suite - Number Permitted in a Detached House, Semi-Detached House or Townhouse

Within a **detached house**, **semi-detached house**, or **townhouse**, each **dwelling unit** may have a maximum of one **secondary suite**. [By-law: 549-2019]

(4) Secondary Suite - Permission in Zones Where a Detached House, Semi-Detached House, or Townhouse Are Not Permitted Building Types

A **secondary suite** is permitted within a **lawfully existing detached house**, a **lawfully existing semi-detached house**, or a **lawfully existing townhouse** in the RA, RAC, CL, CR, I, IH, IE, IS, and IPW zones. [By-law: 549-2019]

150.10.40 Building Requirements

150.10.40.40 Floor Area

(1) Secondary Suite - Interior Floor Area

The **interior floor area** of a **secondary suite**, or all **secondary suites** where more than one is permitted, must be no more than 45 percent of the **interior floor area** of the **dwelling unit** within which it is located. [By-law: 549-2019]

(2) Secondary Suite – In a Basement in a One Storey Detached House

Despite regulation 150.10.40.40(1), in the case of a **secondary suite** located in the **basement** of a one storey **detached house**, the **secondary suite** may occupy the whole of the **basement**. [By-law: 549-2019]

150.13 Short-term Rentals

150.13.1 General

(1) Application of this Section

The regulations in Section 150.13 apply to **short-term rentals**. [By-law: 1453-2017]

150.13.20 Use Requirements

150.13.20.1 General

(1) Short-term Rental – Use Restriction

A **short-term rental** is permitted in a **dwelling unit, secondary suite** or **bed-sitting room**, if:

- (A) there are no more than three **bed-sitting rooms** in a **dwelling unit** used for this purpose;
- (B) the **secondary suite** is exclusively and separately occupied as a principal residence; and
- (C) it is not in a **vehicle**. [By-law: 1453-2017]

150.15 Group Home

150.15.1 General

(1) Application of this Section

The regulations in Section 150.15 apply to **group homes** or **residential care homes**.

(2) Foster Group Homes

Despite regulation 150.15.1(1), the regulations in Section 150.15 do not apply to a **group home** complying with the definition of a "Parent Model Residence" in the Child and Family Services Act, R.S.O. 1990, c. C.11. as amended.

150.15.20 Use Requirements

150.15.20.1 General

(1) Group Home or Residential Care Home - Use Restriction

A **group home** or a **residential care home** must occupy the entire **building** and may not be combined with any other use.

(2) Group Home - Type of Building in the Residential Zone Category

In the Residential Zone category, a **group home** may be in:

(A) a **building** that was originally constructed as a **detached house**; and

(B) a **building** that was originally constructed as a **semi-detached house** if:

(i) the **building** is on a **lot** in the R zone; and

(ii) the **group home** occupies the entire **building**.

150.15.30 Lot Requirements

150.15.30.1 General

(1) [Deleted]

[By-law: 0550-2014]

(2) Correctional Use - Location

A **group home** or a **residential care home** used for correctional purposes must be on a **lot** that:

(A) is not in the RD zone; and

(B) has a **front lot line** abutting a major **street** on the Policy Areas Overlay Map.

150.15.80 Parking

150.15.80.1 General

(1) Group Home - Parking Space Requirements

A **group home** must have at least two **parking spaces** of which:

(A) a minimum of one **parking space** must comply with the requirements for the zone and **building** type; and

(B) no more than one **parking space** may be on the **driveway**.

150.20 Crisis Care Shelter

150.20.1 General

(1) Application of this Section

The regulations in Section 150.20 apply to **crisis care shelters**.

150.20.20 Use Requirements

150.20.20.1 General

(1) Crisis Care Shelter - Use Restriction

A **crisis care shelter** must:

- (A) occupy the entire **building** and not be combined with any other use; and
- (B) be regulated or supervised pursuant to Province of Ontario or Government of Canada legislation.

150.20.30 Lot Requirements

150.20.30.1 General

(1) Crisis Care Shelter - Separation Distance and Location

A **crisis care shelter** must:

- (A) be a minimum distance of 250 metres from a **lot** with a **crisis care shelter** or **municipal shelter**, measured in a straight line from nearest **lot line** to nearest **lot line**; and
- (B) be on a **lot** that has a **front lot line** or **side lot line** abutting:
 - (i) a major **street** on the Policy Areas Overlay Map; or
 - (ii) a **street** which intersects a major **street** on the Policy Areas Overlay Map, and the **lot** is located in whole or in part, within a distance of 80 metres from that intersection.

150.22 Municipal Shelter

150.22.1 General

(1) Application of this Section

(Deleted by By-law 545-2019) [By-law: 545-2019]

150.22.30 Lot Requirements

150.22.30.1 General

(1) Municipal Shelter - Separation Distance and Location

(Deleted by By-law 545-2019) [By-law: 545-2019]

150.25 Multi-tenant Houses

150.25.1 General

(1) Application of this Section

The regulations in Section 150.25 apply to **multi-tenant houses**. [By-law: 156-2023]

(2) Chapter 900 Exceptions

Despite Regulations 900.1.10(3) and 900.1.10(4)(A), a **multi-tenant house** is permitted if it complies with the regulations for the zone in which it is located, and with the regulations in Section 150.25. [By-law: 156-2023]

150.25.20 Use Requirements

150.25.20.1 General

(1) Dwelling units

A **multi-tenant house** may include **dwelling units**, provided that the total number of **dwelling rooms**, excluding rooms in a **dwelling unit**, does not exceed the applicable number set out in regulations 150.25.20.1(3)(B) and (C), 150.25.20.1(4)(B) and (C), and 150.25.20.1(5)(B) and (C). [By-law: 256-2024]

(2) Washrooms

A **multi-tenant house** must have sanitary facilities, which include a toilet, wash basin, and a bath or a shower, at a minimum rate of one sanitary facility for every four **dwelling rooms**. If the calculation of the number of required washrooms results in a number with a fraction, the number is rounded up to the nearest whole number. [By-law: 156-2023]

(3) Regulations in the R, RD, RS, RT, and most RM zones

In the R, RD, RS, RT, and RM zones:

(A) a **multi-tenant house** is permitted in:

- (i) a **building** originally constructed as a **multi-tenant house**; and
- (ii) a **building** type in which **dwelling units** are permitted in the applicable zone. [By-law: 256-2024]

(B) the maximum number of **dwelling rooms** permitted in a **building** containing a **multi-tenant house** is 6.

(C) despite (B) above, in an R zone within a "12 Dwelling Room Special Area" area on the Multi-tenant House Overlay Map, the maximum number of **dwelling room** permitted in a **building** containing a **multi-tenant house** is 12. [By-law: 256-2024]

(D) Regulations (A) and (B) above apply to RM zones where the zone label on the Zoning By-law Map:

- (i) has a numerical value of 6 or less following the letter "u" in the zone label; or
- (ii) does not include "u" value. [By-law: 156-2023]

(4) Regulations in the RA, RAC and some RM zones

In the RA, RAC, and RM zones:

(A) a **multi-tenant house** is permitted in the following **building** types:

- (i) a **building** originally constructed as a **multi-tenant house**; and
- (ii) a **building** type in which **dwelling units** are permitted in the applicable zone. [By-law: 256-2024]

(B) a **building** type in which **dwelling units** are permitted in the applicable zone. [By-law: 256-2024]

(B) within a '6 Dwelling Room Special Area' area on the Multi-tenant House Overlay Map, the maximum number of **dwelling rooms** permitted in a **building** containing a **multi-tenant house** is 6. [By-law: 256-2024]

- (C) in all other areas, the maximum number of **dwelling rooms** permitted in a **building** containing a **multi-tenant house** is 12. [By-law: 156-2023]

(5) Regulations in the CR and CRE zones

In the CR and CRE zones:

- (A) a **multi-tenant house** is permitted in the following **building** types:
- (i) a **building** originally constructed as a **multi-tenant house**; and
 - (ii) a **building** type permitted in the applicable zone.
- (B) within a '6 Dwelling Room Special Area' area on the Multi-tenant House Overlay Map, the maximum number of **dwelling rooms** permitted in a **building** containing a **multi-tenant house** is 6. [By-law: 256-2024]
- (C) in all other areas, the maximum number of **dwelling rooms** permitted in a **building** containing a **multi-tenant house** is 25. [By-law: 156-2023]

150.30 Senior's Community House

150.30.1 General

(1) Application of this Section

The regulations in Section 150.30 apply to **seniors community houses**.

150.30.20 Use Requirements

150.30.20.1 General

(1) Seniors Community House - Use Restriction

A **seniors community house**:

- (A) must occupy the entire **building**;
- (B) may not be combined with another use; and
- (C) may not have residents, excluding staff, less than 65 years old.

(2) Seniors Community House - Location Restriction

A **seniors community house** may not be located in the area bounded on the north by Dundas St. W., on the east by Dufferin St. and the rail lines, on the south by Lake Shore Blvd. W., and on the west by Roncesvalles Ave.

150.30.30 Lot Requirements

150.30.30.1 General

(1) Seniors Community House - Separation Distance

A **seniors community house** must be a minimum distance of 250 metres from a **lot** with a **seniors community house**, measured from nearest **lot line** to nearest **lot line**.

150.30.40 Building Requirements

150.30.40.1 General

(1) Seniors Community House - Age of Building

A **building** with a **seniors community house** must have been constructed more than 5 years prior to it being used as a **seniors community house**, excluding additions or exterior alterations.

150.45 Day Nursery

150.45.1 General

(1) Application of this Section

The regulations in Section 150.45 apply to **day nurseries**.

150.45.20 Use Requirements

150.45.20.1 General

(1) Day Nursery - Permitted Locations in Specified Zone Categories

In the Residential Zone category or the Residential Apartment Zone category, a **day nursery** may be in an **apartment building** or a **building** with one or more of the following uses:

- (A) **public school**;
- (B) **private school**;
- (C) **place of worship**;
- (D) **community centre**; or
- (E) library.

(2) Day Nursery - Permitted in a Detached House or Semi-Detached House in the R Zone

In addition to regulation 150.45.20(1), in the R zone, a **day nursery** may be located in a **building** that is or was originally constructed as a **detached house** or a **semi-detached house** if:

- (A) the **day nursery** occupies the entire **building**; or
- (B) the **day nursery** is in combination with a **dwelling unit** that is the principal residence of the **day nursery** operator.

150.45.40 Building Requirements

150.45.40.1 General

(1) Day Nursery - Location in an Apartment Building

A **day nursery** in an **apartment building** must be only on the first **storey**.

(2) Day Nursery - Size Restriction in a School

A **day nursery** in a **public school** or a **private school** is subject to the following:

- (A) it must be on the first **storey**; and
- (B) its **interior floor area** may be no greater than 40% of the **gross floor area** of the first **storey** of the **building**.

150.45.50 Yards

150.45.50.1 General

(1) Day Nursery - Yard Restrictions for a Children's Play Area

A children's play area for a **day nursery**:

- (A) in the Residential Zone category, may not be in a **front yard** or a **side yard** abutting a **street**; and
- (B) in the Residential Apartment Zone category, may be no closer to a **lot line** abutting a **street** than 6.0 metres.

150.48 School

150.48.1 General

(1) Application of this Section

The regulations in Section 150.48 apply to **public schools** or **private schools**.

150.48.20 Use Requirements

150.48.20.1 General

(1) Adult Education School

An adult education school is permitted if:

- (A) it is in a **building** used as a **private school** or **public school** or in a **building** that was originally constructed as a **private school** or **public school**; and
- (B) the adult education school is funded by the Provincial or Federal government for:
 - (i) adult English or French as a second language courses delivered by district school boards;
 - (ii) literacy and basic skills programming delivered by community agencies or district school boards;
 - (iii) credit courses for adults delivered by district school boards;
 - (iv) continuing education programs, including general interest courses, delivered by district school boards;
 - (v) adult Aboriginal language programs delivered by district school boards; or
 - (vi) Canadian citizenship preparation programs delivered by district school boards.

(2) Day Nursery

A **day nursery** is permitted in a **building** used as a **private school** or a **public school**, or a **building** that was originally constructed as a **private school** or a **public school**, if:

- (A) the **day nursery** is on the first **storey**; and
- (B) the **interior floor area** used by the **day nursery** is no greater than 40% of the **interior floor area** of the first **storey** of the **building**.

150.48.50 Yards

150.48.50.10 Landscaping

(1) Public School, Private School - Landscaping

A **lot** with a **public school** or a **private school** must have:

- (A) a minimum 1.5 metre wide strip of **soft landscaping**, along all **side lot lines** and **rear lot lines**; and
- (B) a minimum 3.0 metre wide strip of **soft landscaping**, along the entire length of any **lot line** abuts a **street**, excluding areas used for play, walkways, **driveways**, parking, loading, student drop-off and pick-up,

150.48.50.11 Landscaping Exemptions

(1) Landscaping Exemptions - Existing Buildings, CR and CRE Zones

The requirements of 150.48.50.10(1) do not apply:

- (A) to a **lawfully existing building**; or
- (B) to a **building** in the CR zone or CRE zone. [By-law: 1675-2013]

150.48.60 Ancillary Buildings and Structures

150.48.60.1 General

(1) **Portable Classroom Building**

A portable classroom **building** may be on a **lot** with a **lawfully existing public school** or **private school** if the portable classroom **building** complies with Section 150.48 and the zone in which the **lot** is located.

150.48.60.20 Setbacks

(1) **Ancillary Building and Structure Setbacks**

Buildings or **structures** that are **ancillary** to a **public school** or **private school** must:

- (A) comply with the required minimum **building setbacks** for the zone in which the **lot** is located; and
- (B) despite (A) above, a portable classroom **building** must be set back from all **lot lines** a distance equal to at least half the height of the portable classroom **building**.

150.48.60.40 Height

(1) **Portable Classroom Buildings - Height**

A portable classroom **building** may be no more than 4.0 metres in height.

(2) **Calculation of Height**

The height of a portable classroom **building** is the distance between **average grade** and the highest part of the **building**, excluding permitted encroachments above the height limit for the zone in which the portable classroom **building** is located.

150.48.60.41 Height Exemptions

(1) **Lawfully Existing Portable Classroom Building - Height**

If the **lawful** height of a **lawfully existing** portable classroom **building** in the Residential Zone category, the Residential Apartment Zone category, the Commercial Zone Category, or the IE zone is greater than the permitted maximum height, that **lawful** height is the maximum height for that **lawfully existing** portable classroom **building**.

(2) **Addition or Extension or to a Lawfully Existing Portable Classroom Building**

Any addition or extension to a **building** referenced in regulation 150.48.60.41(1) must comply with the permitted maximum height or be authorized by a Section 45 Planning Act minor variance.

150.48.150 Waste

150.48.150.1 General

(1) **Waste Storage**

All waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **public school** or a **private school** is constructed pursuant to a building permit issued more than three years after May 9, 2013.

150.50 Place of Worship

150.50.1 General

(1) Application of this Section

The regulations in Section 150.50 apply to **places of worship**.

150.50.20 Use Requirements

150.50.20.1 General

(1) Other Uses

The following uses are permitted if combined with a **place of worship**:

(A) library or reading room if it is only accessible from inside the **building**;

(B) **retail store** if:

(i) the **interior floor area** does not exceed 25 square metres;

(ii) it sells only religious goods; and

(iii) it is only accessible from inside the **building**; and

(C) **dwelling unit** if:

(i) there is one **dwelling unit**;

(ii) the **interior floor area** of the **dwelling unit** does not exceed 250 square metres; and

(iii) the **lot** with the **place of worship** is located in the Residential Zone category, the Residential Apartment Zone category, the Commercial Residential Zone category, or the Commercial Residential Employment Zone category, or in the IE zone.

150.50.40 Building Requirements

150.50.40.10 Height

(1) Building Height - Architectural Elements

A minaret, steeple or similar architectural element on a **place of worship building** may exceed the permitted maximum height of the **building** by 40%, if the horizontal area of the minaret, steeple or similar architectural element is no more than 30.0 square metres.

150.50.40.11 Height Exemptions

(1) Lawfully Existing Place of Worship - Building Height - Architectural Elements

If a **lawfully existing place of worship** has a **lawful** architectural element such as a minaret, steeple or similar architectural element that exceeds the permitted maximum height for a **building**, the maximum height for that architectural element is its **lawful** height for that **lawfully existing place of worship**.

150.50.50 Yards

150.50.50.10 Landscaping

(1) Landscaping

Subject to regulation 5.10.50.10(1), if a **lot** has a **place of worship**, the **lot** must comply with the following:

- (A) a minimum 1.5 metre wide strip of **soft landscaping** must be provided along the entire length of each **side lot line** and **rear lot line**;
- (B) the area of the **front yard** that is not used for **vehicle** access must be **landscaping** and a minimum of 75% of the required **front yard landscaping** must be **soft landscaping**; and
- (C) if the **lot** abuts a **lot** in the Residential Zone category or the Residential Apartment Zone category, there must be, along the entire length of the part of the **lot line** abutting that **lot**:
 - (i) a 3.0 metre wide strip of **soft landscaping**; and
 - (ii) a fence.

(2) Driveway Access to a Lot Crossing a Landscaping Area

A **lot** with a **place of worship** may have a **driveway** which crosses a required **landscaping** area, if the **driveway** is no more than 6.0 metres in width.

150.50.150 Waste

150.50.150.1 General

(1) Storage of Waste

All waste and **recyclable material** must be stored in a wholly enclosed **building**, if a **place of worship** is constructed pursuant to a building permit issued more than three years after May 9, 2013.

150.60 Marihuana Production Facility

150.60.20 Use Requirements

150.60.20.1 General

- (1) All Activities in an Enclosed Building
A **medical marihuana production facility** must be in a wholly enclosed **building**. [By-law: 0403-2014]
- (1) All Activities in an Enclosed Building
A **marihuana production facility** must be in a wholly enclosed **building**. [By-law: 0403-2014] [By-law: 1124-2018]
- (2) Open Storage
Open storage is not permitted with a **medical marihuana production facility**. [By-law: 0403-2014]
- (2) Open Storage
Open storage is not permitted with a **marihuana production facility**. [By-law: 0403-2014] [By-law: 1124-2018]

150.60.40 Building Requirements

150.60.40.1 General

- (1) Separation Distance
A **lot** with a **medical marihuana production facility** must be:
- (A) at least 70 metres from a **lot** in a:
- (i) Residential Zone category;
 - (ii) Residential Apartment Zone category;
 - (iii) Commercial Zone category;
 - (iv) Commercial Residential Zone category;
 - (v) Commercial Residential Employment Zone category;
 - (vi) Institutional Zone category; and
 - (vii) Open Space Zone category; and
- (B) at least 70 metres from a **lot** with a:
- (i) **public school**;
 - (ii) **private school**;
 - (iii) **place of worship**; and
 - (iv) **day nursery**. [By-law: 0403-2014]
- (1) Separation Distance
A **lot** with a **marihuana production facility** must be:
- (A) at least 70 metres from a **lot** in a:
- (i) Residential Zone category;
 - (ii) Residential Apartment Zone category;
 - (iii) Commercial Zone category;
 - (iv) Commercial Residential Zone category;
 - (v) Commercial Residential Employment Zone category;
 - (vi) Institutional Zone category; and

- (vii) Open Space Zone category; and
- (B) at least 70 metres from a **lot** with a:
 - (i) **public school**;
 - (ii) **private school**;
 - (iii) **place of worship**; and
 - (iv) **day nursery**. [By-law: 0403-2014] [By-law: 1124-2018]

150.60.60 Ancillary Building

150.60.60.10 Location

(1) Location of Building or Structure Used for the Purpose of Site and Facility Security

A **building** or **structure** used for security purposes for a **medical marihuana production facility**:

- (A) may be in the **front yard**; and
- (B) is exempt from the required minimum **front yard setbacks, side yard setbacks** and **rear yard setbacks**. [By-law: 0403-2014]

(1) Location of Building or Structure Used for the Purpose of Site and Facility Security

A **building** or **structure** used for security purposes for a **marihuana production facility**:

- (A) may be in the **front yard**; and
- (B) is exempt from the required minimum **front yard setbacks, side yard setbacks** and **rear yard setbacks**. [By-law: 0403-2014] [By-law: 1124-2018]

150.60.90 Loading

150.60.90.10 Location

(1) Loading Space Location

Loading spaces for a **medical marihuana production facility** must be in a wholly enclosed **building**. [By-law: 0403-2014]

(1) Loading Space Location

Loading spaces for a **marihuana production facility** must be in a wholly enclosed **building**. [By-law: 0403-2014] [By-law: 1124-2018]

150.80 Drive Through Facility

150.80.1 General

(1) Application of this Section

The regulations in Section 150.80 apply to **drive through facilities**.

150.80.20 Use Requirements

150.80.20.1 General

(1) Drive Through Facility - Use Restriction with Residential

No person may use any land or erect or use any **building** or **structure** for the purpose of a **drive through facility** in the Residential Zone category, the Residential Apartment Zone category, the Commercial Residential Employment Zone category, or the Commercial Residential Zone category other than a CR zone where the zone label has an 'r' value of 0.0.

(2) Drive Through Facility - A Use in Combination with Other Uses

A **drive through facility** is a use that must be in combination with another use, neither of which may be construed as being **ancillary** to the other, and all regulations pertaining to each use apply.

(3) Vehicle Stacking Space Dimensions

A **vehicle** stacking space must be at least 3.0 metres wide by 6.5 metres long.

(4) Drive Through Facility - Stacking Aisle Provisions

A **drive through facility**:

- (A) in combination with a use selling food or beverage, must provide at least ten **vehicle** stacking spaces in a **stacking aisle**; and
- (B) not in combination with a use selling food or beverage, must provide at least four **vehicle** stacking spaces in a **stacking aisle**.

(5) Drive Through Facility - Location Restriction for Stacking Aisle

No portion of a **drive through facility stacking aisle** may be located in a **front yard** or **side yard** that abuts a **street**, unless the **lot** is in and abuts a **lot** in the E zone.

(6) Stacking Aisle Location

Despite 150.80.20(5), if a **building** located on a **corner lot** has both a **drive through facility** and a **vehicle fuel station**, the **drive through facility stacking aisle** may be located in a **side yard** between the **building** and the **street**.

150.80.40 Building Requirements

150.80.40.1 General

(1) Drive Through Facility - Separation Distance

A **drive through facility**, including **stacking aisles**, must be at least 30.0 metres from any **lot** in the Residential Zone category, Residential Apartment Zone category, Commercial Residential Employment Zone Category, or the Commercial Residential Zone category other than a CR zone where the zone label has an 'r' value of 0.0.

150.90 Vehicle Dealership

150.90.1 General

(1) Application of this Section

The regulations in Section 150.90 apply to **vehicle dealerships**.

150.90.20 Use Requirements

150.90.20.1 General

(1) Vehicle Dealership - Major Street Location

A **vehicle dealership** must be on a **lot** with a **front lot line** that abuts a major **street** on the Policy Areas Overlay Map.

(2) Vehicle Dealership - Outside Display and Storage

The outside display or storage of **vehicles** in combination with a **vehicle dealership** is subject to the following:

- (A) the **interior floor area** of the **vehicle dealership building** must be at least 150 square metres;
- (B) **vehicles** may not be displayed or stored in required **parking spaces**; and
- (C) the area used for the outside display or storage of **vehicles** must:
 - (i) be clearly identified and marked;
 - (ii) be at least 3.0 metres from a **lot line**;
 - (iii) have a fence installed along a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; and
 - (iv) have a minimum 3.0 metre wide strip of **soft landscaping** along the **lot line** abutting a **street**.

150.92 Vehicle Fuel Station

150.92.1 General

(1) Application of this Section

The regulations in Section 150.92 apply to **vehicle fuel stations**.

150.92.20 Use Requirements

150.92.20.1 General

(1) Vehicle Fuel Station - Restrictions on Retail Store and Personal Service Shop

The maximum **interior floor area** for a **retail store** and **personal service shop** in combination with a **vehicle fuel station** on a **lot** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category may be no more than 140 square metres.

(2) Vehicle Fuel Stations in Combination with Other Uses

Despite regulations 5.10.1.10(2) and (3), if the requirements of this By-law for other uses in combination with a **vehicle fuel station** regulate the same area, the most restrictive regulation governs all uses on the **lot**.

(3) Vehicle Fuel Station - Outside Display and Storage

A **vehicle fuel station** may have outside display and storage if it is:

- (A) no more than 20% of the area of the **lot** outside of wholly enclosed **buildings**; and
- (B) enclosed by a fence.

(4) Vehicle Fuel Station - Propane Tank Requirement

A **lot** with a **vehicle fuel station** may have a propane tank that contains no more than 1500 litres of propane.

(5) Vehicle Fuel Station - Propane Tank Separation Requirements

If a **vehicle fuel station** has a propane tank that contains more than 100 litres of propane, the propane tank may be no closer than 7.5 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

150.92.30 Lot Requirements

150.92.30.20 Lot Frontage

(1) Vehicle Fuel Station - Lot Frontage Requirements

A **lot** with a **vehicle fuel station** must have a minimum **lot frontage** of 30.0 metres

150.92.30.21 Lot Frontage Exemptions

(1) Vehicle Fuel Station - Permitted Lot Frontage Requirements for Lawfully Existing Lots

If a **lawfully existing vehicle fuel station** is on a **lot** that has a **lawful lot frontage** which is less than the minimum **lot frontage** required in regulation 150.92.30.20 (1), that **lawful lot frontage** is the minimum **lot frontage** for that **lawfully existing vehicle fuel station** on that **lot**.

150.92.30.30 Lot Depth

(1) Vehicle Fuel Station - Lot Depth Requirements

A **lot** with a **vehicle fuel station** must have a minimum **lot depth** of 45.0 metres.

150.92.30.31 Lot Depth Exemptions

(1) Vehicle Fuel Station - Permitted Depth Requirements for Lawfully Existing Lots

If a **lawfully existing vehicle fuel station** is on a **lot** that has a **lawful lot depth** which is less than the minimum **lot depth** required in regulation 150.92.30.30(1), that **lawful lot depth** is the minimum **lot depth** for that **lawfully existing vehicle fuel station** on that **lot**.

150.92.40 Building Requirements

150.92.40.70 Setbacks

(1) Vehicle Fuel Station - Building Setbacks

A **vehicle fuel station** is subject to the following:

- (A) the minimum **side yard setback** for a **building** or **structure** is the greater of:
 - (i) 3.0 metres;
 - (ii) 4.5 metres from a **side lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category;
 - (iii) 7.5 metres from a **side lot line** that abuts a **street**; or
 - (iv) the minimum **side yard setback** required for the zone in which it is located; and
- (B) the minimum **rear yard setback** for a **building** or **structure** is the greater of:
 - (i) 3.0 metres;
 - (ii) 7.5 metres if the **lot** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; or
 - (iii) the minimum **rear yard setback** required for the zone in which it is located.

150.92.40.71 Setbacks Exemptions

(1) Vehicle Fuel Station - Permitted Building Setbacks for Lawfully Existing Buildings

If a **lawfully existing vehicle fuel station building** or **structure** has a **lawful building setback** that is less than the required minimum **building setback** in regulation 150.92.40.70(1), that **lawful building setback** is the minimum **building setback** for that **lawfully existing vehicle fuel station building** or **structure** on that **lot**.

150.92.50 Yards

150.92.50.10 Landscaping

(1) Vehicle Fuel Station - Soft Landscaping

A lot with a **vehicle fuel station** must have:

- (A) a minimum 1.5 metres wide strip of **soft landscaping** along that portion of a **lot line** that abuts a **street** and is between the **street** and the portion of the **lot** used for a **vehicle fuel station**, excluding the part used for **vehicle** access to the **lot**; and
- (B) a minimum 3.0 metres wide strip of **soft landscaping** and a fence along that portion of a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category, and is adjacent to the **vehicle fuel station**. [By-law: PL130592 Nov21_2018]

150.92.60 Ancillary Buildings and Structures

150.92.60.20 Setbacks

(1) Vehicle Fuel Station - Fuel Pump Island and Canopy Setbacks

For a vehicle fuel station:

- (A) Despite regulation 150.92.40.70(1), the edge of a canopy that is above the fuel pumps may be no closer than 5.0 metres from a **lot line** abutting a **street**; and
- (B) Despite regulation 150.92.40.70(1), a fuel pump island may be no closer than:
 - (i) 7.5 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; and
 - (ii) 6.0 metres from any other **lot line**.

150.92.60.21 Setbacks Exemptions

(1) Vehicle Fuel Station - Permitted Minimum Distance for Lawfully Existing Canopy

If a **lawfully existing vehicle fuel station** has a canopy above the fuel pumps that is **lawfully** closer to a **lot line** abutting a **street** than is permitted in regulation 150.92.60.20(1)(A), that **lawful** distance from a **lot line** abutting a **street** is the minimum distance required for a canopy above the fuel pumps for that **lawfully existing vehicle fuel station**.

(2) Vehicle Fuel Station - Permitted Minimum Distance for Lawfully Existing Fuel Pump Island

If **lawfully existing vehicle fuel station** has a fuel pump island that is **lawfully** closer to a **lot line** than is permitted in regulation 150.92.60.20(1)(B), that **lawful** distance is the minimum distance required for a fuel pump island from that **lot line** on the **lot** for that **lawfully existing vehicle fuel station**.

150.92.60.40 Height

(1) Vehicle Fuel Station Canopy Height

A **vehicle fuel station** canopy with or without structural support may not be more than 6.0 metres above the elevation of the ground directly below it.

150.92.60.41 Height Exemptions

(1) Vehicle Fuel Station - Permitted Height for Lawfully Existing Canopy

If a **lawfully existing vehicle fuel station** has a canopy above the fuel pumps that has a **lawful** height greater than the permitted maximum height in regulation 150.92.60.40(1), that **lawful** height is the maximum height for a canopy for that **lawfully existing vehicle fuel station**.

150.92.60.70 Lot Coverage

(1) Vehicle Fuel Station - Lot Coverage Calculation

The area of a **vehicle fuel station** canopy above the fuel pumps is not included in the calculation of **lot coverage**.

150.92.100 Access to Lot

150.92.100.1 General

(1) Vehicle Fuel Station - Vehicle Access and Required Landscaping

Vehicle access to a **lot** with a **vehicle fuel station** may cross required **landscaping**.

(2) Vehicle Fuel Station - Vehicle Access Requirements

A **lot** with a **vehicle fuel station** must have two **vehicle** access points from the **street** to the **lot** and each **vehicle** access must have a width of at least 6.0 metres and no more than 11.0 metres, measured along the **lot line** abutting a **street**.

150.92.100.30 Separation

(1) Vehicle Fuel Station - Vehicle Access - Separation Distances

Vehicle access to a **lot** with a **vehicle fuel station** must be at least:

- (A) 7.5 metres from any other **vehicle** access on the **lot**; and
- (B) 3.0 metres from any **side lot line**.

(2) Vehicle Fuel Station - Vehicle Access for Corner Lots

Vehicle access to a **vehicle fuel station** on a **corner lot** must be at least 7.5 metres from the point of intersection of the **front lot line** and **side lot line**.

150.94 Vehicle Service Shop

150.94.1 General

(1) Application of this Section

The regulations in Section 150.94 apply to **vehicle service shops**.

150.94.20 Use Requirements

150.94.20.1 General

(1) Vehicle Service Shop - Activity Limited to Inside Building

All activities of a **vehicle service shop** must take place in a wholly enclosed **building**.

150.94.30 Lot Requirements

150.94.30.1 General

(1) Vehicle Service Shop - Vehicle Access- Permitted Width

Vehicle access to a **lot** with a **vehicle service shop** may have a minimum width of 6.0 metres and a maximum width of 11.0 metres, measured along the **lot line** abutting a **street**.

(2) Vehicle Service Shop - Vehicle Access- Separation Distances

Vehicle access to a **lot** with a **vehicle service shop** must be at least:

- (A) 7.5 metres from any other **vehicle** access on the **lot**; and
- (B) 3.0 metres from any **side lot line**.

(3) Vehicle Service Shop - Vehicle Access for Corner Lots

Vehicle access to a **vehicle service shop** on a **corner lot** must be at least 7.5 metres from the point of intersection of the **front lot line** and **side lot line**.

150.94.40 Building Requirements

150.94.40.1 General

(1) Vehicle Service Shop - Building Setbacks

A **vehicle service shop** is subject to the following:

(A) the minimum **side yard setback** for a **building** or **structure** is the greater of:

- (i) 3.0 metres;
- (ii) 4.5 metres from a **side lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (iii) 7.5 metres from a **side lot line** that abuts a **street**; or
- (iv) the minimum **side yard setback** required for the zone in which it is located; and

(B) the minimum **rear yard setback** for a **building** or **structure** is the greater of:

- (i) 3.0 metres;
- (ii) 7.5 metres if the **lot** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; or
- (iii) the minimum **rear yard setback** required for the zone in which it is located.

150.94.50 Yards

150.94.50.1 General

(1) Vehicle Service Shop - Soft Landscaping

A **lot** with a **vehicle service shop** must have:

- (A) a minimum 1.5 metres wide strip of **soft landscaping** along the entire length of a **lot line** that abuts a **street**, excluding the part used for **vehicle** access to the **lot**; and
- (B) a minimum 3.0 metres wide strip of **soft landscaping** and a fence along the entire length of a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

150.96 Vehicle Washing Establishment

150.96.1 General

(1) Application of this Section

The regulations in Section 150.96 apply to **vehicle washing establishments** with an **interior floor area** greater than 38 square metres.

150.96.20 Use Requirements

150.96.20.1 General

(1) Vehicle Washing Establishment - Activity Limited to Inside Building

All mechanical washing, waxing and drying operations must take place within a wholly enclosed **building**.

(2) Vehicle Washing Establishment - Stacking Aisle Requirements

A mechanical **vehicle washing establishment** is subject to the following:

- (A) a minimum of 10 **vehicle** stacking spaces must be provided in a **stacking aisle** on the same **lot**; and
- (B) a **vehicle** stacking space must be at least 3.0 metres wide by 6.5 metres long.

(3) Vehicle Washing Establishment - Restrictions on Other Uses

The maximum **interior floor area** for a **retail store** and **personal service shop** on a **lot** with a **vehicle washing establishment** is 20.0 square metres.

150.96.30 Lot Requirements

150.96.30.1 General

(1) Vehicle Washing Establishment - Location

A **vehicle washing establishment** must:

- (A) be on a **lot** that abuts a major **street** on the Policy Areas Overlay Map; and
- (B) be on a **lot** with a **front lot line** that is at least 26.0 metres wide.

(2) Vehicle Washing Establishment - Vehicle Access - Permitted Width

Vehicle access to a **lot** with a **vehicle washing establishment** may have a minimum width of 6.0 metres and a maximum width of 11.0 metres, measured along the **lot line** abutting a **street**.

(3) Vehicle Washing Establishment - Fence Requirement

The **lot lines** abutting another **lot line** on a **corner lot** with a **vehicle washing establishment** must be fenced.

(4) Vehicle Washing Establishment - Vehicle Access - Separation Distances

Vehicle access to a **lot** with a **vehicle washing establishment** must be at least:

- (A) 7.5 metres from any other **vehicle** access on the **lot**; and
- (B) 3.0 metres from any **lot line**.

(5) Vehicle Washing Establishment - Vehicle Access for Corner Lots

Vehicle access to a **vehicle washing establishment** on a **corner lot** must be at least 7.5 metres from the point of intersection of the **front lot line** and **side lot line**.

150.96.40 Building Requirements

150.96.40.1 General

(1) Vehicle Washing Establishment - Building Setbacks

A **vehicle washing establishment** is subject to the following:

- (A) the minimum **side yard setback** for a **building** or **structure** is the greater of:
 - (i) 3.0 metres;
 - (ii) 4.5 metres from a **side lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category;
 - (iii) 7.5 metres from a **side lot line** that abuts a **street**; or
 - (iv) the minimum **side yard setback** required for the zone in which it is located; and
- (B) the minimum **rear yard setback** for a **building** or **structure** is the greater of:
 - (i) 3.0 metres;
 - (ii) 7.5 metres if the **lot** abuts a **lot** in the Residential Zone category or Residential Apartment Zone category; or
 - (iii) the minimum **rear yard setback** required for the zone in which it is located.

(2) Vehicle Washing Establishment - Building Setbacks from Entrance and Exit

The **vehicle** entrance and exit from a **vehicle washing establishment building** must be at least 12.0 metres from any **lot line** abutting a **street**.

150.100 Eating Establishment

150.100.1 General

(1) Application of this Section

The regulations in Section 150.100 apply to **eating establishments**.

150.100.20 Use Requirements

150.100.20.1 General

(1) Eating Establishment - Other Uses

Other uses combined with an **eating establishment** are subject to the following:

(A) The following may occupy a maximum of 6% of the total **interior floor area** of the **eating establishment** to a maximum of 50 square metres:

- (i) dance floor;
- (ii) stage;
- (iii) teletheatre gambling;
- (iv) disc jockey;
- (v) sound room;
- (vi) areas dedicated to recreational activities; and
- (vii) any other entertainment area; and

(B) other than an **outdoor patio**, all uses must be entirely in the **building** with the **eating establishment**.

150.100.30 Lot Requirements

150.100.30.1 General

(1) Eating Establishment - Fence Required if abutting a Lot in a Residential Zone

A **lot** with an **eating establishment** must have a fence along the portion of a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

(2) Eating Establishment - Separation from Residential Zone & Residential Apartment Zone Categories

An **eating establishment** with an **interior floor area** greater than 1,000 square metres must be at least 300 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category. This regulation does not apply if the **eating establishment** is in combination with a **hotel**.

150.110 Adult Entertainment Establishment

150.110.1 General

(1) Application of this Section

The regulations in Section 150.110 apply to **adult entertainment** uses.

150.110.30 Lot Requirements

150.110.30.1 General

(1) Adult Entertainment - Separation Distance

A **lot** with an **adult entertainment** use must be:

- (A) at least 100 metres from a **lot** in the Residential Zone category or Residential Apartment Zone category;
- (B) at least 500 metres from a **lot** with a **public school**, **private school**, or **place of worship**, or a **lot** in a IS zone or IPW zone; and
- (C) at least 500 metres from a **lot** with an **adult entertainment** use or a **body rub service**.

150.120 Funeral Home

150.120.1 General

(1) Application of this Section

The regulations in Section 150.120 apply to **funeral homes**.

150.120.30 Lot Requirements

150.120.30.1 General

(1) Funeral Home - Location

A **funeral home** must be on a **lot** that abuts a major **street** on the Policy Areas Overlay Map.

150.120.50 Yards

150.120.50.1 General

(1) Funeral Home - Fence Requirements

A **lot** with a **funeral home** must have a fence along the portion of a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

150.120.80 Parking

150.120.80.1 General

(1) Funeral Home - Parking Area to be Set Back

An area with **parking spaces** for a **funeral home** must be at least 1.5 metres from a **lot line** that abuts a **lot** in the Residential Zone category or Residential Apartment Zone category.

150.130 Firing Range

150.130.1 General

(1) Application of this Section

The regulations in Section 150.130 apply to firing ranges.

150.130.20 Use Requirements

150.130.20.1 General

(1) Firing Range Interpretation

A firing range or shooting range is not included in any other defined term in this By-law.

(2) Firing Range Use

A firing range or shooting range for the discharge of a firearm must be:

(A) in an wholly enclosed **building**; and

(B) operated by the Canadian Armed Forces, or by a public police force or other body operating under the authorization of a Municipal, Provincial or Federal government.